



Procedure No.: EXP202203905 (PS/00567/2022)

Appeal No. RR/00418/2023

Examined the appeal filed by the entity VODAFONE ESPAÑA, S.A.U., CIF: A80907397, (hereinafter, "the appellant"), against the resolution issued by the Director of the Spanish Agency for Data Protection in the procedure, PS/00567/2022, for violation of the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC (GDPR), and in the L.O. 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI) and based on the following:

FACTS

FIRST: On April 28, 2023, the Director of the Spanish Agency for Data Protection issued a resolution in the sanctioning procedure PS/00567/2022, opened against the entity VODAFONE ESPAÑA, S.A.U., CIF: A80907397, which was notified on May 3, 2023, for violation of Article 22.2 of the LSSI, regarding the deficiencies detected in the "Cookie Policy" of the website, during the time that non-technical or necessary cookies were used without the user's consent, with a fine of 20,000 euros (twenty thousand euros).

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00567/2022, the following was recorded:

First: In the verification carried out by this Agency on the website (**URL.1) on September 28, 2022, it was found that, upon entering the main page and without taking any action on it or accepting the cookies, the following non-necessary cookies, both first-party and third-party, were used without the prior consent of the user:

a) Performance cookies (2):

Cookie "utag_main" whose domain is "****DOMINIO.1"

Cookie "mbox" whose domain is "****DOMINIO.1"

b) Targeting cookies (7):

Cookie "guest_id" whose domain is "****DOMINIO.3"

Cookie "AMCV_24*" whose domain is "****DOMINIO.2"

Cookie "IDEMás" whose domain is "****DOMINIO.4"

Cookie "demdex" whose domain is "****DOMINIO.6"

Cookie "personalization_id" whose domain is "****DOMINIO.3"

Cookie "_gcl_au" whose domain is "****DOMINIO.2"

Cookie "test_cookie" whose domain is "****DOMINIO.4"

c) Functionality cookies:

Cookie "PORTAL_JSESSIONID" whose domain is "****DOMINIO.1"

Cookie "SS_X_JSESSIONID" whose domain is "****DOMINIO.1"

d) Cookies that could not be classified, but whose domain was third-party (4):

Cookie "muc_ads" whose domain is "****DOMINIO.5"

Cookie "vfes" whose domain is "****DOMINIO.6"

Cookie "guest_id_marketing" whose domain is "****DOMINIO.3"

Cookie "guest_id_ads" whose domain is "****DOMINIO.3"

Second: In the following verification carried out by this Agency on the website (**URL.1) on February 28, 2023, it was still found that upon entering the main page and without taking any action on it, the following non-necessary cookies, both first-party and third-party, were used without the prior consent of the user:

a) Performance cookies (2):

Cookie "utag_main" whose domain is "****DOMINIO.1"

Cookie "mbox" whose domain is "****DOMINIO.1"

b) Targeting cookies (7):

Cookie "guest_id" whose domain is "****DOMINIO.3"

Cookie "AMCV_24*" whose domain is "***DOMINIO.2"

Cookie "IDEMás" whose domain is "***DOMINIO.4"

Cookie "demdex" whose domain is "***DOMINIO.6"

Cookie "personalization_id" whose domain is "***DOMINIO.3"

Cookie "_gcl_au" whose domain is "***DOMINIO.2"

Cookie "test_cookie" whose domain is "***DOMINIO.4"

c) Functionality cookies:

Cookie "PORTAL_JSESSIONID" whose domain is "***DOMINIO.1"

Cookie "SS_X_JSESSIONID" whose domain is "***DOMINIO.1"

d) Third-party cookies:

Cookie "muc_ads" whose domain is "***DOMINIO.5"

Cookie "guest_id_marketing" whose domain is "***DOMINIO.3"

Cookie "guest_id_ads" whose domain is "***DOMINIO.3"

Third: In the following verification carried out by this Agency on the website (**URL.1) on April 12, 2023, once the deficiencies detected were corrected, according to the entity, it was found that upon entering the main page and without taking any action on it, the following cookies were used:

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a).- Cookies detected as strictly necessary:

OptanonConsent

at_check

JSESSIONID.

b).- Cookies detected but whose function could not be identified:

Cookie "utag_main" whose domain is "***DOMAIN.1"

Cookie "SS_X_JSESSIONID" whose domain is "***DOMAIN.1"

_womtp_id.1d896c8b54ef470b9646b699f9c08b99.bbc6;

VODAFONE_PREFERRED_LANGUAGE_COOKIE;

VODAFONE_TRANSLATION_LOGGED_CACHE_KEY

seleccionEscritorio;

clientTypeID;

_womtp_ses.1d896c8b54ef470b9646b699f9c08b99.bbc6;

CONSENTMGR;

visid_incap_2626067;

incap_ses_128_2626067

currentDesktop

THIRD: On 10/05/23, the Director of the Spanish Agency for Data Protection issued a resolution for the correction of errors in the sanctioning procedure PS/00567/202, opened against the entity Vodafone España S.A.U.

The material error detected in the resolution of the sanctioning file was the following:

"In section IV of the Legal Grounds, the following is indicated:

IV.-

Sanction

Based on the evidence obtained, it is considered appropriate to adjust the sanction to be imposed, as it has been confirmed that the entity Vodafone has regularized the irregular situation regarding the cookie policy of its website, it is deemed appropriate to impose a final sanction of 20,000 euros (ten thousand euros), for the infringement of article 22.2 of the LSSI, (...)"

The material error occurred when the imposed sanction was transcribed into words, as can be corroborated, in the RESOLVES, the sanction is correctly specified:

"(...) IMPOSE on the entity, VODAFONE ESPAÑA, S.A.U., CIF: A80907397, holder of the website,

***URL.1 a sanction of 20,000 euros (twenty thousand euros) for the infringement of article 22.2 of the LSSI (...)

SECOND: Therefore, in the aforementioned resolution, in section IV (Sanction) of the Legal Grounds, page 31, where it says “20,000 euros (ten thousand euros)” it should say “20,000 euros (twenty thousand euros)”.

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FOURTH: On 16/06/23, a written appeal for reconsideration was submitted to this Agency by the appellant, in which, among other things, the following is alleged:

PRELIMINARY.- Background: The Resolution and summary of the allegations of Vodafone.

I. The Resolution

The Agency, by resolution of April 28, 2023 (hereinafter, the "Resolution of April 28"), issued a Resolution of the Sanctioning Procedure, within the framework of the present sanctioning procedure PS/00567/2022, in which it reduced the sanction imposed for the alleged infringement of article 22.2 of Law 34/2002, of July 11, on information society services and electronic commerce (hereinafter, the "LSSI"), adjusting the sanction from 20,000€ (twenty thousand euros) initially sanctioned to 10,000€ (ten thousand euros).

In said resolution, there was a disparity between the information that appeared written (ten thousand euros) and the amount indicated in numerical figures (20,000€). This same error was maintained in the IV ground of the resolution, in which it was established, textually, that “[...] it is considered appropriate to adjust the sanction to be imposed, as it has been confirmed that the entity Vodafone has regularized the irregular situation regarding the cookie policy [...]”.

In light of this discrepancy, Vodafone raised a query to the email address provided by the Agency for issues related to sanctioning procedures; sanciones@aepd.es

The Agency responded to this request informing my client that it would notify, via electronic headquarters, the correction of the identified errors.

Subsequently, the Director of the Agency issued, on May 10, 2023, a Resolution for the Correction of Errors (hereinafter, the "Resolution of May 10"), establishing that “the material error occurred when the imposed sanction was transcribed into words [...]” and resolving that the imposed sanction was 20,000€ (twenty thousand euros).

II. The allegations of Vodafone

In view of the above, and without prejudice to Vodafone referring in its entirety to the allegations presented on March 21, 2023 (hereinafter, the "Written Allegations of March 21"), my client understands that from the Resolution of April 28 it follows that the Agency's purpose was to adjust the sanction by lowering its amount upon confirming that my client had regularized the situation regarding the cookie policy of the website www.vodafone.es (hereinafter, interchangeably, “Vodafone.es” or “website”).

SOLE.- From the Resolution of April 28 it follows that the purpose of the Agency is to adjust the sanction to ten thousand euros.

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As a consequence of the allegations presented by Vodafone on March 21, 2023, the Agency conducted a re-examination of the website Vodafone.es on April 12, 2023, after which it issued the Resolution of April 28, establishing that, as a result of the regularization carried out by my client, the sanction was to be graduated to ten thousand euros.

However, in the text of the resolution, there was a typographical error indicating a numerical value

(20,000€) and another in text (ten thousand euros). A screenshot of the text of the Resolution of April 28 is provided.

From the literal reading of the text, it is clear that the intention of the resolution is to reduce the sanction imposed on my client to the amount of 10,000€ (ten thousand euros) as a result of the regularization carried out by Vodafone.

The evidence of this regularization work, for which the Agency proceeds to re-graduate the sanction by reducing the sanctioned amount, is evident in that in the last review of the Vodafone website, the Agency found no non-compliance.

In this regard, in the verification carried out on February 28, 2023 (on which the Proposal for Resolution of Sanctioning Procedure is based), 2 performance cookies, 7 targeting cookies, 1 functionality cookie, and 3 third-party cookies were identified. In contrast, in the verification carried out on April 12, 2023 (conducted after the allegations presented by my client regarding the Proposal for Resolution and on which the Resolution of April 28 is based), only 3 strictly necessary cookies and 8 that, according to the Agency, could not be classified, but which Vodafone did correctly describe in its cookie policy, were identified.

Furthermore, in the second legal basis of the Resolution of April 28, it is indicated that, of the other cookies whose purpose could not be identified by the Agency, it has been verified that they are informed about in the cookie policy. That is to say, no argument, reason, or explanation is included in this Resolution that argues that there continues to be an incorrect classification of the cookies or that cookies are being installed contrary to the regulations by my client and that, therefore, the infringement continues to be committed.

Another piece of evidence of the cessation of the infringements is that, unlike what is indicated in the Initiation Agreement of January 23, 2023, in the Resolution of April 28, in the section of "Legal Grounds," the Agency does not establish that a non-compliance persists in the implementation and functioning of the configuration panel. This is because the Agency verified that the classification of the cookie policy was correct, the descriptions provided were sufficient, and, consequently, that the banner functions correctly, as evidenced by my client in the allegations presented on March 21, 2023, specifically in the evidence provided as Document number 7.

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The Agency also concludes that Vodafone has implemented improvements to correct the detected non-compliance, and this is expressly stated in the IV basis of the resolution: [...] upon verifying that the entity Vodafone has regularized the irregular situation regarding the cookie policy of its website [...]. A screenshot of the text of the Resolution of May 10 is provided.

All of this leads to the conclusion that the Agency in its Resolution of April 28 proceeded to graduate the sanction, setting the amount at 10,000€ (ten thousand euros) and that it was not merely a transcription error in writing out the sanction imposed, as indicated in the Resolution of May 10, but rather an error in the figures described in numbers, since writing the number in letters entails a greater effort that prevents misunderstandings, which is not the case when writing numbers in figures.

In addition to the analysis of the interpretation of the wording of the resolution itself, which can only conclude that the intention of the AEPD is to graduate the sanction by lowering its amount to ten thousand euros for having ceased the infringing conduct and, therefore, to adjust the amount of the sanction imposed to the specific period in which the infringement occurred, the principle of legal interpretation must also be considered, whereby the value expressed in letters always prevails over the figures in numbers.

Article 572 of Law 1/2000, of January 7, on Civil Procedure, establishes that "in case of disagreement between different expressions of quantity, the one that is stated in letters shall prevail," and Article 7 of Law 19/1985, of July 16, on Bills of Exchange and Cheques, states that "when an amount is written in a bill of exchange in letters and in numbers, the amount written in letters shall be valid in case of

difference."

Thus, certainty and precision are given to the written expression manifested in letters over the Arabic figures that express an amount. Consequently, in the case at hand, the amount expressed in letters "ten thousand euros" prevails over the amount expressed in figures "20,000 euros." By virtue of all the above,

I REQUEST that this document and all accompanying documents be deemed presented and, accordingly, that the statements contained herein be considered made and, after the appropriate procedures, agree to set the graduation of the amount of the imposed sanction at ten thousand euros (10,000€) following the reasons and provisions in the Resolution of April 28 that led to the reduction of the sanction amount to ten thousand euros and that the written expression manifested in letters prevails over the numerical figures.

LEGAL GROUNDS

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Competence.

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The Director of the Spanish Agency for Data Protection is competent to resolve the present appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 43.1, second paragraph, of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

II

Response to the allegations

The joint assessment of the documentation in the procedure brings to the attention of the AEPD a view of the reported action that has been reflected in the proven facts stated above. However, in response to the allegations presented by the entity being appealed in the appeal for reconsideration, the following should be indicated:

1º.- On 23/01/23, the Director of the Spanish Agency for Data Protection initiated sanctioning proceedings against the entity Vodafone España S.A.U., upon finding reasonable indications of a violation of the provisions of Article 22.2 of the LSSI, due to the irregularities detected on its website regarding the "Cookie Policy," with an initial sanction of 20,000 euros (twenty thousand euros).

2º.- On 06/03/23, the proposed resolution of file PS/00567/2022 was notified to the entity being appealed, in which it was proposed that the Director of the Spanish Agency for Data Protection proceed to sanction the entity Vodafone España S.A.U. with a sanction of 20,000 euros (twenty thousand euros), for the infringement of Article 22.2 LSSI, regarding the deficiencies detected in the "Cookie Policy" of the website, during the time that non-technical or necessary cookies were used without the user's consent.

3º.- On 28/04/23, the Director of the Spanish Agency for Data Protection issued a resolution in the sanctioning procedure PS/00567/202, opened against the entity Vodafone España S.A.U. for violation of Article 22.2 of the LSSI, regarding the deficiencies detected in the "Cookie Policy" of the website, during the time that non-technical or necessary cookies were used without the user's consent, with a sanction of 20,000 euros (twenty thousand euros).

However, when the resolution document was transcribed, an error occurred in it, not in the section "RESOLVES," which, as can be verified, is correctly drafted, but in the Legal Basis "IV- Sanction," where it incorrectly stated the following "(...)20,000 euros (ten thousand euros) (...)", the error made, as can be easily verified, is the transcription in words of the imposed sanction.

In this regard, Article 109.2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), empowers Public Administrations to rectify at any time, ex officio or at the request of interested parties, material, factual, or arithmetic errors existing in their acts, and this was done when the Director of the Spanish Agency for Data Protection issued a

resolution for the rectification of errors, at C/ Jorge Juan, 6

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sanctioning procedure PS/00567/202, expressly indicating in it the following:

“(…) in section IV (Sanction) of the Legal Grounds, page 31, where it says “20,000 euros (ten thousand euros)” it should say: “20,000 euros (twenty thousand euros)”.

Therefore, it is not true, as alleged by the appealing entity, that the intention of the resolution dated 28/04/2, in PS/00567/2022, was to reduce the imposed sanction to the amount of €10,000 (ten thousand euros), as a consequence of the regularization carried out by Vodafone in the “Cookie Policy” of its website, but rather a sanction of €20,000 (twenty thousand euros), for violation of Article 22.2 of the LSSI, regarding the deficiencies detected in the “Cookie Policy” of the website owned by it, during the time that unnecessary cookies were used, without prior consent from the user, which, according to this Agency's knowledge, spanned from 28/09/22, when the first verification of the “Cookie Policy” on the website ***URL.1 was made, until the verification carried out on 12/04/23 as a result of the allegations presented by the appealing entity regarding the initiation of the sanctioning file, where only 3 necessary cookies and 8 cookies were identified, which, although their function could not be identified, Vodafone identified them in its “Cookie Policy” as strictly necessary.

III

Conclusion

Consequently, in the present appeal for reconsideration, as the appealing party has not provided new facts or legal arguments that allow for a reconsideration of the validity of the contested resolution, the Director of the Spanish Agency for Data Protection:

RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by VODAFONE ESPAÑA, S.A.U., CIF: A80907397, against the resolution issued by the Director of the Spanish Agency for Data Protection on 28/04/23, in the sanctioning procedure PS/00567/2022.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period.

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Upon receiving the notification and once it becomes executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National

Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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